BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE POLICY DIRECTIVE 51-11

4 OCTOBER 2021

Law

REMEDIES FOR FRAUD AND CORRUPTION AFFECTING PROCUREMENT AND NONPROCUREMENT TRANSACTIONS

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This publication implements and establishes additional responsibilities related to Department of Defense (DoD) Directive 5505.5, *Implementation of the Program Fraud Civil Remedies Act*; DoD Directive 5405.2, *Release of Official Information in Litigation and Testimony by DoD Personnel as Witnesses*; and DoD Instruction 7050.05, *Coordination of Remedies for Fraud and Corruption Related to Procurement Activities*; and supports the implementation of Public Law 112-239, Section 861, *Requirements and Limitations for Suspension and Debarment Officials of the Department of Defense, the Department of State, and the United States Agency for International Development*; Subpart 9.4 of the Federal Acquisition Regulation, *Debarment, Suspension and Ineligibility*; and Title 2 of the Code of Federal Regulations, Part 1125, *Nonprocurement Debarment and Suspension*. This publication applies to the United States Space Force, Regular Air Force, the Air Force Reserve, and the Air National Guard.

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SUMMARY OF CHANGES

This document has been substantially revised and needs to be completely reviewed. Major changes include re-naming the directive in order to more accurately describe the existing scope of the policy; updates language to reflect applicability to the Space Force; adds language for nonprocurement transactions (e.g., grants); and re-names the Procurement Fraud Remedies Program as the Acquisition Integrity Program (the program historically has coordinating responsibilities for non-procurements such as grants, and for remedies for misconduct in addition to fraud, such as other categories of corruption).

1. Overview. The Department of the Air Force (DAF) must detect and correct instances of fraud and corruption affecting DAF procurement and nonprocurement transactions to maintain operational readiness, recoup lost financial resources, restore public confidence in Air Force and Space Force acquisitions, and prevent fraudulent conduct from occurring in the future.

2. Policy. The DAF will aggressively pursue all significant investigations of fraud and corruption which affect DAF procurement or nonprocurement transactions or interests, and will ensure that appropriate criminal, civil, contractual, and administrative remedies are taken in a coordinated, expeditious manner. The DAF will ensure monies lost to fraud under DAF transactions will be recovered for use by affected Air Force and Space Force programs to the extent allowable by law.

3. Responsibilities and Authorities.

3.1. The General Counsel of the Department of the Air Force (SAF/GCR):

3.1.1. Provides the Suspension and Debarment Official for the Department of the Air Force, for procurement and nonprocurement transactions affecting the Air Force and Space Force.

3.1.2. Establishes guidance and provides the DAF's centralized organization responsible for monitoring and coordinating remedies in all significant cases of fraud or corruption affecting DAF transactions.

3.2. The Deputy General Counsel for Contractor Responsibility and Conflict Resolution (SAF/GCR) is:

3.2.1. The Suspension and Debarment Official of the Department of the Air Force.

3.2.2. Responsible for establishing the Acquisition Integrity Program to execute the responsibilities of the General Counsel under this Policy Directive.

3.3. The Office of the Judge Advocate General (AF/JA):

3.3.1. Provides headquarters-level legal advice on fraud and corruption affecting procurement and nonprocurement transactions, including Air Force and Space Force wide legal services, through the Civil Law and Litigation Directorate (AF/JAC), and supports the implementation of the Acquisition Integrity Program.

3.3.2. Provides functional oversight and assistance to judge advocates in the field on fraud and corruption affecting procurement and nonprocurement transactions.

3.4. The Air Force Office of Special Investigations is responsible for the investigation of significant fraud and corruption cases and supporting the implementation of the Acquisition Integrity Program.

3.5. Major Command, Field Command, Field Operating Agency, and Direct Reporting Unit Commanders are responsible for facilitating the pursuit of appropriate remedies in all cases of significant fraud and corruption affecting procurement and nonprocurement transactions involving resources under their command or control, and supporting the implementation of the Acquisition Integrity Program.

Frank Kendall
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DoDD 5505.5, *Implementation of the Program Fraud Civil Remedies Act*, 30 August 1988

DoDD 5405.2, *Release of Official Information in Litigation and Testimony by Department of Defense Personnel as Witnesses*, 23 July 1985

DoDI 7050.05, *Coordination of Remedies for Fraud and Corruption Related to Procurement Activities*, 28 July 2021

PL 112-239, Section 861, *Requirements and Limitations for Suspension and Debarment Officials of the Department of Defense, the Department of State, and the United States Agency for International Development*, 2 January 2013

FAR Subpart 9.4, *Debarment, Suspension and Ineligibility*, 10 March 2021

Title 2 CFR Part 1125, *Nonprocurement Debarment and Suspension*, 26 June 2007

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

Prescribed Forms

None

Adopted Forms

Air Force Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

DAF—The Department of the Air Force, including the United States Air Force and the United States Space Force

DoD—Department of Defense

SAF/GCR—Deputy General Counsel for Contractor Responsibility and Conflict Resolution